

# **WAKOAI CODE ACCESS, MODIFICATION AND INTELLECTUAL PROPERTY LICENSE AGREEMENT**

This Code Access, Modification and Intellectual Property License Agreement (“Agreement”) is entered into on **10 June 2026** (“Effective Date”) by and between:

**WakoAI**  
**Wako Softwares Limited**

and

**Pratham Jain**  
100 Main Street, New Jersey, New York, 07102

WakoAI and Pratham Jain are individually a “Party” and collectively the “Parties.”

## **1. PURPOSE**

WakoAI owns or controls certain software, source code, applications, technical materials, documentation, and associated intellectual property.

WakoAI wishes to provide Pratham Jain with broad access to such materials for software development, modification, testing, improvement, maintenance, creation of derivative works, and redistribution.

Pratham Jain wishes to receive such access and rights subject to the terms and conditions of this Agreement.

Accordingly, the Parties agree as follows.

## **2. DEFINITIONS**

### **2.1 “Licensed Software”**

“Licensed Software” means the WakoAI software and associated materials made available to Pratham Jain under this Agreement, including:

- a. source code;
- b. object code and compiled binaries;

- c. `app.asar` and associated Electron application files;
- d. frontend and renderer code;
- e. backend code;
- f. configuration files;
- g. build scripts and development tooling;
- h. APIs and integrations;
- i. documentation;
- j. application assets;
- k. development branches and repositories;
- l. test files;
- m. database schemas and related technical materials; and
- n. other software or technical materials provided by WakoAI.

The Licensed Software includes the full source repository and all materials identified in Schedule A.

## **2.2 “Modifications”**

“Modifications” means any alteration, enhancement, adaptation, improvement, translation, port, refactoring, extension, derivative work, new functionality, bug fix, or other change made to or based upon the Licensed Software by or on behalf of Pratham Jain.

## **2.3 “WakoAI Intellectual Property”**

“WakoAI Intellectual Property” means all intellectual property owned or controlled by WakoAI before or independently of the work performed under this Agreement, including software, source code, algorithms, designs, documentation, trademarks, logos, artwork, sounds, databases, know-how, trade secrets, and other proprietary materials.

## **2.4 “Confidential Information”**

“Confidential Information” means non-public information disclosed or made available by WakoAI to Pratham Jain, including the Licensed Software, source code, credentials, architecture, technical documentation, business information, product plans, security information, and unpublished features.

### 3. GRANT OF LICENSE

Subject to the terms of this Agreement, WakoAI grants Pratham Jain a **non-exclusive, worldwide, royalty-free license** for the five-year Term to:

- a. access the Licensed Software;
- b. reproduce the Licensed Software;
- c. execute and use the Licensed Software;
- d. inspect and analyze the Licensed Software;
- e. modify the Licensed Software;
- f. adapt the Licensed Software;
- g. create derivative works;
- h. compile and build modified versions;
- i. create development and production builds;
- j. incorporate the Licensed Software into other software;
- k. distribute the Licensed Software;
- l. distribute Modifications and derivative works;
- m. commercially distribute the Licensed Software and Modifications; and
- n. otherwise use, modify, and distribute the Licensed Software and derivative works, subject to this Agreement and applicable third-party licenses.

The Developer may access and modify all portions of the Licensed Software provided by WakoAI.

### 4. FULL CODE ACCESS

WakoAI authorizes Pratham Jain to have full development access to the Licensed Software.

Such access includes, without limitation:

- source repositories;
- source files;

- development branches;
- build systems;
- application packages;
- frontend code;
- backend code;
- renderer code;
- configuration files;
- development documentation;
- test environments;
- build scripts;
- application assets; and
- other technical materials forming part of the Licensed Software.

WakoAI may provide access through Git repositories, source-code archives, development environments, credentials, or other technical means.

Pratham Jain may create local and remote copies of the Licensed Software as reasonably necessary to exercise the rights granted by this Agreement.

## **5. AUTHORIZED MODIFICATIONS**

Pratham Jain is expressly authorized to modify the Licensed Software in any manner.

Without limitation, Pratham Jain may:

- a. add functionality;
- b. remove functionality;
- c. replace existing functionality;
- d. refactor code;
- e. modify user interfaces;
- f. modify application logic;
- g. modify APIs and integrations;
- h. modify configuration;
- i. modify build systems;
- j. create derivative works;
- k. create development builds;

- l. create production builds;
- m. fix bugs;
- n. optimize performance;
- o. improve security;
- p. integrate third-party software; and
- q. otherwise alter, adapt, or improve the Licensed Software.

No additional approval from WakoAI is required for modifications that are otherwise permitted under this Agreement.

## **6. OWNERSHIP OF WAKOAI SOFTWARE**

Except for the rights expressly granted under this Agreement, WakoAI retains all right, title, and interest in and to WakoAI Intellectual Property.

Nothing in this Agreement constitutes a sale or transfer of ownership of WakoAI's pre-existing intellectual property.

The grant of rights under this Agreement is a license and does not constitute an assignment of WakoAI's underlying intellectual property.

## **7. OWNERSHIP OF MODIFICATIONS**

### **7.1 WakoAI-Owned Materials**

WakoAI retains ownership of its original source code, software, intellectual property, trademarks, branding, and other pre-existing materials.

### **7.2 Developer-Created Materials**

Except for WakoAI Intellectual Property and third-party materials, Pratham Jain retains ownership of original code, functionality, designs, and other intellectual property independently created by Pratham Jain in connection with Modifications.

To the extent that Modifications contain WakoAI Intellectual Property, ownership of the underlying WakoAI Intellectual Property remains with WakoAI.

### **7.3 Rights to Modifications**

Pratham Jain may use, modify, reproduce, distribute, publish, license, commercialize, and create derivative works from Modifications, subject to:

- a. WakoAI's ownership of its underlying Intellectual Property;
- b. applicable third-party licenses; and
- c. the terms of this Agreement.

## **8. LICENSE BACK TO WAKOAI**

To the extent Pratham Jain retains intellectual property rights in Modifications or other materials incorporated into the Licensed Software, Pratham Jain grants WakoAI a perpetual, worldwide, irrevocable, royalty-free, transferable, sublicensable license to use, reproduce, modify, adapt, distribute, display, perform, commercialize, and create derivative works from such Modifications.

This license survives termination of this Agreement.

## **9. REDISTRIBUTION RIGHTS**

WakoAI expressly authorizes Pratham Jain to redistribute the Licensed Software and Modifications.

Pratham Jain may:

- a. distribute original copies of the Licensed Software;
- b. distribute modified versions;
- c. distribute derivative works;
- d. distribute source-code versions;
- e. distribute compiled or binary versions;
- f. incorporate the Licensed Software into other software;
- g. distribute software incorporating the Licensed Software;
- h. commercially distribute the Licensed Software and Modifications;
- i. sell products incorporating the Licensed Software or Modifications;
- j. license Modifications to third parties; and

k. sublicense rights in Modifications to third parties.

These rights are worldwide and do not require separate approval from WakoAI.

However, Pratham Jain may not represent that a modified version is an official WakoAI release or that WakoAI endorses a modified product unless WakoAI has expressly authorized such representation.

Any third-party or open-source components contained within the Licensed Software remain subject to their applicable licenses.

## **10. SOURCE CODE CONFIDENTIALITY**

The Licensed Software and source code are Confidential Information of WakoAI except to the extent that Pratham Jain lawfully publishes or redistributes such materials pursuant to the express rights granted under this Agreement.

Before authorized publication or redistribution, Pratham Jain shall take reasonable measures to protect non-public WakoAI information that is not part of the authorized distribution.

The confidentiality obligations of this Agreement do not restrict rights expressly granted under Section 9.

## **11. THIRD-PARTY ACCESS**

Pratham Jain may provide copies of the Licensed Software or Modifications to third parties as permitted under Section 9.

Pratham Jain remains responsible for complying with applicable third-party and open-source license requirements.

Repository credentials, private WakoAI systems, authentication credentials, signing keys, deployment credentials, and other access credentials are not automatically transferred to third parties merely because redistribution of the Licensed Software is permitted.

## **12. WAKOAI TRADEMARKS AND BRANDING**

All WakoAI trademarks, trade names, logos, icons, product names, sounds, artwork, animations, and other branding materials remain the property of WakoAI or their respective owners.

This Agreement does not transfer ownership of WakoAI trademarks to Pratham Jain.

Pratham Jain may modify, replace, remove, or omit WakoAI branding when creating and distributing modified versions.

Pratham Jain may not use WakoAI trademarks in a manner that falsely represents WakoAI as the developer, distributor, sponsor, or endorser of a modified product.

Nothing in this Agreement prevents accurate factual statements that software is based upon or derived from WakoAI software.

## **13. THIRD-PARTY AND OPEN-SOURCE SOFTWARE**

The Licensed Software may contain third-party and open-source components.

Such components remain subject to their applicable license terms.

Nothing in this Agreement restricts rights granted directly to Pratham Jain or other recipients under an applicable open-source or third-party license.

Pratham Jain shall comply with applicable license and attribution requirements when modifying or distributing software containing third-party components.

Where a third-party license requires source-code disclosure, attribution, notice preservation, or other conditions, those requirements shall apply to the relevant component.

## **14. SECURITY AND CREDENTIALS**

Pratham Jain shall use reasonable security measures to protect:

- source code;
- repository credentials;
- API keys;
- authentication credentials;
- signing certificates;
- encryption keys;
- deployment credentials; and
- other WakoAI technical credentials.

Pratham Jain shall notify WakoAI without undue delay upon becoming aware of unauthorized access, loss, disclosure, compromise, or suspected compromise of such credentials or WakoAI systems.

## **15. PERSONAL AND COMMERCIAL USE**

Pratham Jain may use the Licensed Software and Modifications for personal, development, educational, commercial, and business purposes, subject to the rights and restrictions contained in this Agreement.

Pratham Jain may incorporate the Licensed Software into products or services and may commercially exploit Modifications and derivative works as permitted by this Agreement.

## **16. PUBLICATION AND DISCLOSURE**

Pratham Jain may publish and distribute the Licensed Software and Modifications as expressly permitted by Section 9.

Pratham Jain shall not disclose WakoAI Confidential Information that is unrelated to the Licensed Software or the authorized distribution of the Licensed Software.

This restriction does not prohibit disclosures required by applicable law.

## **17. RECORD OF MODIFICATIONS**

Pratham Jain may use any reasonable version-control system or development process when modifying the Licensed Software.

WakoAI may request reasonable documentation concerning substantial changes specifically commissioned by WakoAI.

## **18. SUPPORT AND MAINTENANCE**

Unless separately agreed in writing, WakoAI is not obligated to provide technical support, maintenance, updates, bug fixes, hosting, deployment assistance, or other services to Pratham Jain or recipients of redistributed software.

## **19. WARRANTIES**

The Licensed Software is provided on an “AS IS” and “AS AVAILABLE” basis unless expressly agreed otherwise in writing.

To the maximum extent permitted by applicable law, WakoAI disclaims implied warranties concerning merchantability, fitness for a particular purpose, non-infringement, availability, security, and error-free operation.

## **20. INDEMNIFICATION**

Pratham Jain shall be responsible for losses, claims, damages, and reasonable expenses arising directly from:

- a. unauthorized use of WakoAI Intellectual Property;
- b. material breach of this Agreement;

- c. intentional misuse of WakoAI systems or credentials; or
- d. infringement caused solely by materials independently added by Pratham Jain and not by the original Licensed Software or third-party components.

The scope of any indemnification obligation shall be subject to applicable law.

## 21. LIMITATION OF LIABILITY

To the maximum extent permitted by applicable law, neither Party shall be liable to the other for indirect, incidental, special, consequential, exemplary, or punitive damages arising out of this Agreement.

Nothing in this Agreement excludes or limits liability to the extent such exclusion or limitation is prohibited by applicable law.

## 22. TERM

This Agreement begins on **10 June 2026** and continues for **five (5) years**, unless earlier terminated in accordance with this Agreement.

## 23. TERMINATION

WakoAI may terminate this Agreement immediately upon written notice if Pratham Jain:

- a. materially breaches this Agreement;
- b. knowingly misrepresents WakoAI's endorsement or ownership;
- c. materially misuses WakoAI credentials or systems;
- d. materially infringes WakoAI's intellectual property rights; or
- e. materially violates an obligation that cannot reasonably be cured.

Either Party may terminate this Agreement for convenience upon **30 days' written notice**.

## 24. EFFECT OF TERMINATION

Upon termination:

- a. Pratham Jain shall cease accessing WakoAI's private repositories and systems;
- b. Pratham Jain shall return or securely delete WakoAI credentials;

c. Pratham Jain shall cease using WakoAI Confidential Information that is not covered by the continuing rights granted under this Agreement; and

d. Pratham Jain shall reasonably cooperate with WakoAI concerning the transition of any work specifically commissioned by WakoAI.

Termination shall not invalidate licenses or distributions lawfully granted to third parties before termination.

Rights granted to recipients of properly authorized distributions shall continue according to the applicable license under which those materials were distributed.

Sections concerning ownership, intellectual property, confidentiality, redistribution, liability, and rights intended by their nature to survive termination shall survive termination.

## **25. ASSIGNMENT**

Pratham Jain may not assign this Agreement without WakoAI's prior written consent.

WakoAI may assign this Agreement to an affiliate, successor, purchaser of relevant assets, or other successor in interest.

## **26. GOVERNING LAW**

This Agreement shall be governed by and construed in accordance with the laws of **India**.

Subject to mandatory applicable law, the courts located in **Bengaluru, Karnataka, India** shall have exclusive jurisdiction over disputes arising out of or relating to this Agreement.

## **27. DISPUTE RESOLUTION**

Before commencing formal proceedings, the Parties shall attempt in good faith to resolve any dispute through discussion between authorized representatives.

If the dispute is not resolved within 30 days after written notice of the dispute, either Party may pursue remedies available under applicable law.

## **28. ENTIRE AGREEMENT**

This Agreement constitutes the entire agreement between the Parties concerning access to, modification of, and rights in the Licensed Software and supersedes prior discussions and understandings concerning that subject matter.

Any amendment to this Agreement must be in writing and signed by both Parties.

## 29. SEVERABILITY

If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force and effect to the maximum extent permitted by law.

## 30. WAIVER

Failure by either Party to enforce any provision of this Agreement shall not constitute a waiver of that provision or of the right to enforce it subsequently.

## 31. ELECTRONIC EXECUTION

The Parties may execute this Agreement electronically to the extent permitted by applicable law.

Electronic records and signatures may be used to evidence acceptance and execution of this Agreement.

## 32. NOTICES

Formal notices under this Agreement shall be delivered by email, courier, registered post, or another legally recognized means to the contact information below.

**WakoAI**

Email: [dev@wako.ai](mailto:dev@wako.ai)

**Pratham Jain**

Email: [prathamjain2011@gmail.com](mailto:prathamjain2011@gmail.com)

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# SCHEDULE A — LICENSED SOFTWARE

The following materials are covered by this Agreement:

### Included Materials

- Full source repository
- `app.asar`
- Renderer bundle
- Frontend source
- Backend source

- Electron source and configuration
- Build scripts
- Test suite
- Documentation
- Configuration files
- Application assets

### **Excluded Materials**

None.

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## **SIGNATURES**

The Parties acknowledge that they have read, understood, and agreed to the terms of this Agreement.

**Date:** 10 June 2026